

M/s Prasoon Kumar and Prashant Kumar Cold Storage v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 May 2022 · WRIT - C No. 11135 of 2022 · **Writ disposed; liberty to object under clause 6.5; coercive action stayed eight weeks.**

HEADNOTE

On a writ to quash a citation notice and restrain recovery of billed electricity dues, with a further plea to restore disconnected supply, the Division Bench expressed no opinion on merits and disposed of the petition by granting liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed time, with a limited stay of coercive recovery.

FACTUAL SUMMARY

The petitioners, operators of a cold storage, sought certiorari to quash a citation notice dated 09.08.2021 for Rs. 20,40,213 and mandamus restraining recovery of that sum and of Rs. 22,42,089 shown in a bill dated 13.08.2021. They also asked that respondent no. 6 decide their application dated 29.06.2021 and restore supply disconnected on 01.03.2022. Counsel for the distribution licensee stated that an objection to the demand would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy-to-writ

HOLDING

Without expressing any opinion on merits, a writ seeking quashing of a citation notice, restraint of recovery of billed amounts, and restoration of disconnected supply is disposed of by granting liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the concerned officer within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after hearing, and no coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined merits examination of the citation and bill and relegated the consumer to a clause 6.5 objection as the statutory substitute for the writ. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Challenge to a citation notice and billed demand of about Rs. 22 lakh was channelled to the Para 6.5 objection before the distribution officer. ¶ 1

6.5-representation-as-appropriate-remedy On the licensee's statement that an objection would be decided time-bound, the Court treated a Para 6.5 representation as the appropriate remedy and fixed a decision window. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CITATION NOTICE, BILLED DEMAND, PENDING 29.06.2021 APPLICATION, AND DISCONNECTION

The Court expressly declined to express any opinion on merits and did not order restoration of supply. ¶ 1